

39. **Conditions of sale.** — A trustee may sell subject to any reasonable *conditions of sale* (*f*), but would not be justified in clogging the property with restrictions that were evidently uncalled for by the state of the title (*g*). [Prior to the recent enactments it was] usual, in penning a trust for sale, to give express authority to the trustees to insert *special conditions of sale*; [but] as to trusts created after 28th August, 1860, and where the settlement did not otherwise direct, trustees [were authorised by Lord Cranworth's] Act to insert such *special or other stipulations*, either as to title or evidence of title or otherwise, as they might think [*436] fit (*h*). [This enactment has since *been repealed (*a*), but its place had been previously supplied by the Conveyancing and Law of Property Act, 1881, s. 35, which provides that, as to trusts for sale and powers of sale created by instruments coming into operation after the 31st day of December, 1881, trustees may, unless the instrument creating the trust or power otherwise provides, sell or concur with any other persons in selling, subject to any such conditions respecting title and evidence of title or other matter, as they think fit (*b*).] But still this would be no warrant for the introduction of stipulations which are plainly not rendered necessary by the state of the title, and are calculated to damp the success of the sale; [as, for instance, a condition limiting the commencement of the title to a recent date where there is no difficulty in giving the earlier title and no special advantage in withholding it, or a condition making all recitals in the abstracted documents conclusive evidence of the matters recited, or a condition that the property is sold subject to the existing tenancies, restrictive covenants, and other incidents of tenure (if any) when there are

(*f*) *Hobson v. Bell*, 2 Beav. 17.

(*g*) *Wilkins v. Fry*, 2 Rose, 375; S. C. 1 Mer. 268; *Rede v. Oakes*, 4 De G. J. & S. 505, 10 Jur. N. S. 1246; *Dance v. Goldingham*, 8 L. R. Ch. App. 902; [*Dunn v. Flood*, 25 Ch. D. 629; 28 Ch. Div. 586.]

(*h*) 23 & 24 Vict. c. 145, s. 2.

[(*a*) 45 & 46 Vict. c. 38, s. 34. The repeal is not to affect the operation,

effect, or consequence of any instrument executed or made before the commencement of the Act. The section of Lord Cranworth's Act may therefore be called in aid in cases of settlements executed after 28th Aug. 1860, and prior to the Conveyancing and Law of Property Act, 1881.]

[(*b*) 44 & 45 Vict. c. 41, s. 35.]